

CV-25-005895 LVNV FUNDING LLC vs FRISBIE, JEFFREY - Plaintiff's Motion for Order that Matters in Request for Admissions be Deemed Admitted Pursuant to CCP 2033.280 – GRANTED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: On August 3, 2026, Plaintiff filed a motion for order that matters in requests for admission be deemed admitted pursuant to Code of Civil Procedure 2033.280. There is no opposition on file. "If a party to whom requests for admission are directed fails to serve a timely response . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted[.]" (Code Civ. Proc., § 2033.280.) "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc., § 2033.280(c).) On September 30, 2025, Plaintiff propounded 11 requests for admission on Defendant. Defendant did not respond to the requests. Objections are waived. (Code Civ. Proc., § 2033.280(a).) Pursuant to Code of Civil Procedure section 2033.280, Plaintiff's unopposed motion is GRANTED. There is no proof of service of the proposed order on file. Moving party to serve and re-submit the proposed order. (Cal. Rules of Court, rule 3.1312.)

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